Neelam Verma vs State Of Up And 18 Others on 20 January, 2020

Author: Raj Beer Singh

Bench: Raj Beer Singh

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HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 64

Case :- APPLICATION U/S 482 No. - 2454 of 2020

Applicant :- Neelam Verma

Opposite Party :- State Of Up And 18 Others

Counsel for Applicant :- Vinay Kumar Srivastava,Kumar Anish

Counsel for Opposite Party :- G.A.

Hon'ble Raj Beer Singh,J.
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Heard learned counsel for the applicant and learned A.G.A. for the State.

This application has been filed for quashing the order dated 20.11.2017 passed by Chief Judicial Magistrate, Deoria in Misc. Case No. 1427 of 2016, whereby application filed by applicant under Section 156(3) Cr.P.C. has been rejected as well as for quashing the order dated 10.07.2019 passed by learned Sessions Judge, Deoria in criminal revision no. 232/2017, whereby revision filed against the order dated 20.11.2017 has also been dismissed.

It has been argued by learned counsel for applicant that applicant has submitted an application under Section 156(3) Cr.P.C. against opposite party nos. 2 to 19, making several allegations, which constitute prima facie a cognizable offence, but learned trial court has not considered the entire facts and law in correct perspective and the application of the applicant under Section 156(3) Cr.P.C. has

been dismissed vide impugned order dated 20.11.2017 without assigning appropriate reasons. There were allegations against opposite party nos. 2 to 19, which includes some police officials, that they have tried to take illegal possession over land of applicant and that in the alleged incident, applicant has sustained injuries. Being aggrieved against the order dated 20.11.2017, applicant has preferred a criminal revision, but it was also dismissed without considering relevant facts and law by impugned order dated 10.07.2019. Applicant has also filed an application before the lower revisional court that opposite party, namely, Rahul Verma and Masoor Alam constable are not present but that application was rejected by Session Court. Learned revisional court has made false allegations in order-sheet that despite repeated calls revisionist or her counsel was not present. Learned revisional court has dismissed the revision mainly on the ground that injury nos. 2 to 5 are simple in nature and regarding injury no. 1 there was no supplementary report and thus, all injuries were simple in nature. It was submitted that revisional court has not considered the case of the applicant and passed an ex-parte order though counsel for the applicant has appeared before the court concerned. It was further argued that both the impugned orders are against facts and law and thus, liable to be set aside.

Learned A.G.A. has opposed the application and argued that learned trial court as well as learned revisional court have assigned appropriate reasons for rejection of application under Section 156(3) Cr.P.C and that no illegality could be pointed out in the impugned orders.

Law regarding jurisdiction under Section 156(3) is well settled whether the Magistrate is bound to pass an order for registration of the FIR and its investigation by the police on each and every application under section 156 (3) Cr.P.C. containing allegation of commission of a cognizance offence is not 'res-integra' now, as this controversy has been settled by the Division Bench of the Court in the case of Sukhwasi vs. State of U.P. 2007 (59) ACC 739. In the case of Smt. Masuman vs. State of U.P. & others 2007 (1) ALJ 221 and some other cases, the single judges of the Court had taken a view that if the application under section 156 (3) Cr.P.C. discloses the commission of a prima-facie cognizable offence, then it is obligatory for the magistrate to direct investigation after registration of the FIR on the basis of that application. Disagreeing with this view, the following question was referred to the larger Bench for decision in the case of Sukhwasi vs. State of U.P. "Whether the Magistrate is bound to pass an order on each and every application under section 156(3)Cr.P.C. containing allegations of commission of a cognizable offence for registration of the FIR and its investigation by the police even if those allegations, prima-facie, do not appear to be genuine and do not appeal to reason, or he can exercise judicial discretion in the matter and can pass order for treating it as 'complaint' or to reject it in suitable cases"?

After having considered the full Bench decision of the Court in the case of Ram Babu Gupta & others vs. State of U.P. 2001 (43) ACC 50 and many other cases, the Division Bench in the case of Sukhwasi vs. State of U.P. has answered the question in paragraph 23 of the report as under:-

> "The reference is, therefore, answered in the manner that it is not incumbent upon a Magistrate to allow an application under section 156(3) Cr.P.C. and there is no such legal mandate. He may or may not allow the application in his discretion. The second leg of the reference is also answered in the manner that the Magistrate has a

discretion to treat an application under section 156(3) Cr.P.C. as a complaint."

The Magistrate is required to apply its mind to find out whether the first information sought to be lodged by the applicant had any substance or not. If the allegations made in the application under section 156(3) Cr.P.C. prima-facie appear to be without any substance, then in such case the Magistrate can refuse to direct registration of the FIR and its investigation by the police, even if the application contains the allegations of commission of a cognizable offence. In such case, the Magistrate is fully competent to reject the application. Even in the cases, where prima facie cognizable offence is disclosed from the averments made in the application under section 156 (3) Cr.P.C. in appropriate case according to facts and nature of the offences alleged to have been committed, the Magistrate can decline to direct investigation and in such cases the application under section 156(3) Cr.P.C. can be treated as complaint, as held by the Division Bench in the case of Sukhwasi vs. State of U.P. (supra).

Thus, though, in appropriate cases, learned Magistrate can make a direction for police to investigate the matter but this jurisdiction has to be exercised cautiously and such orders cannot be passed in a routine manner.

In view of the facts and circumstances of the present case and also considering nature of allegations made in the application under Section 156(3) Cr.P.C., rejection of application under Section 156(3) Cr.P.C by learned trial court vide impugned order dated 20.11.2017, cannot be said against the provisions of law or suffering from any perversity or illegality. Similarly, perusal of record shows that learned revisional court has also considered entire relevant facts and has assigned appropriate reasons for dismissal of revision, while passing impugned order dated 10.07.2019.

Considering entire facts, it cannot be said that impugned orders are suffering from any such illegality, perversity or any other material irregularity, so as to warrant any interference by exercising powers under Section 482 Cr.P.C. Accordingly, the present application lacks merit and is dismissed.

Order Date :- 20.1.2020 Anand